SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 4353 of 2020 (YEAR: 2019)

CORAM: R.F. NARIMAN, VINEET SARAN

Ssangyong Engineering & Construction Co. Ltd.
... Appellant(s) / Petitioner(s)
Versus
NHAI
... Respondent(s)

Acts Referred:	Arbitration and Conciliation Act, 1996
Sections:	Section 34 Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Clarified post-2015 amendment scope of Section 34, ruling that mere misconstruction of a contract does not justify setting aside an award unless interpretation is impossible.

RATIO DECIDENDI

The Court held that: Clarified post-2015 amendment scope of Section 34, ruling that mere misconstruction of a contract does not justify setting aside an award unless interpretation is impossible. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Ssangyong Engineering & Construction Co. Ltd. v. NHAI (Civil Appeal No. 4353 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Arbitration and Conciliation Act, 1996, particularly Section 34 Arbitration Act. Clarified post-2015 amendment scope of Section 34, ruling that mere misconstruction of a contract does not justify setting aside an award unless interpretation is impossible.

OPERATIVE ORDER

ORDER: Decided